

Data Processing Agreement

This Data Processing Agreement ("DPA") sets out the terms on which spanSense Ltd processes personal data on behalf of a Customer, in accordance with Article 28 of the UK GDPR. It supplements, and forms part of, the spanSense Terms & Conditions.

Document

Data Processing Agreement

Last updated

3 August 2026

Governing law

England & Wales

1. Parties and Background

- 1.1 This DPA is entered into between **spanSense Ltd** ("**spanSense**", the "**Processor**") and **[CUSTOMER LEGAL NAME]** (the "**Customer**", the "**Controller**"), together the "**parties**".
- 1.2 This DPA applies whenever spanSense processes personal data on the Customer's behalf in connection with the Customer's use of the Service under the Terms & Conditions between the parties (the "**Agreement**"). In the event of a conflict between this DPA and the Agreement regarding the processing of personal data, this DPA prevails.

2. Definitions

- 2.1 "**Controller**", "**Processor**", "**Data Subject**", "**Personal Data**", "**Processing**", and "**Personal Data Breach**" have the meanings given in the UK GDPR.
- 2.2 "**Data Protection Legislation**" means the UK GDPR, the Data Protection Act 2018, and any other applicable law relating to the processing of personal data, each as amended or replaced from time to time.
- 2.3 "**Sub-processor**" means any third party engaged by spanSense to process personal data on the Customer's behalf in providing the Service.
- 2.4 "**Customer Personal Data**" means the personal data described in Annex 1, processed by spanSense on the Customer's behalf under the Agreement.

3. Processing of Customer Personal Data

- 3.1** spanSense will only process Customer Personal Data:
- to provide, maintain, and support the Service;
 - on the documented instructions of the Customer, including those set out in the Agreement and this DPA, unless required to do otherwise by law (in which case spanSense will inform the Customer before processing, unless prohibited from doing so); and
 - as otherwise agreed in writing between the parties.
- 3.2** spanSense will promptly inform the Customer if, in its opinion, an instruction from the Customer infringes the Data Protection Legislation.
- 3.3** spanSense will ensure that persons authorised to process Customer Personal Data are subject to a duty of confidentiality.

4. Security

- 4.1** spanSense will implement appropriate technical and organisational measures to protect Customer Personal Data against unauthorised or unlawful processing and against accidental loss, destruction, or damage, as described in spanSense's Data Security Policy and summarised in Annex 2.

5. Sub-processors

- 5.1** The Customer gives spanSense general authorisation to engage the Sub-processors listed in Annex 2 to support the Service.
- 5.2** spanSense will impose data protection terms on any Sub-processor that are no less protective than those in this DPA, and will remain liable to the Customer for that Sub-processor's performance of its obligations.
- 5.3** spanSense will give the Customer reasonable prior notice of any intended change to its Sub-processors, and will consider any reasonable objection raised by the Customer.

6. International Transfers

- 6.1** Where Customer Personal Data is transferred outside the UK, spanSense will ensure the transfer is subject to appropriate safeguards under the Data Protection Legislation (for example, the UK's International Data Transfer Agreement, an adequacy decision, or the Sub-processor's equivalent standard contractual clauses).

7. Assistance to the Customer

- 7.1** Taking into account the nature of the processing, spanSense will provide reasonable assistance to the Customer, at the Customer's cost where the assistance requires material additional effort, in relation to:
 - responding to requests from Data Subjects exercising their rights under the Data Protection Legislation;
 - the Customer's obligations regarding the security of processing, data protection impact assessments, and consultation with supervisory authorities; and
 - demonstrating compliance with this DPA, as set out in clause 9.

8. Personal Data Breach

- 8.1** spanSense will notify the Customer without undue delay after becoming aware of a Personal Data Breach affecting Customer Personal Data, and will provide such information as the Customer reasonably requires to meet its own notification obligations under the Data Protection Legislation.

9. Audit and Compliance

- 9.1** spanSense will make available to the Customer information reasonably necessary to demonstrate compliance with this DPA, and will permit and contribute to audits, including inspections, conducted by the Customer or an auditor mandated by the Customer, subject to reasonable prior notice, reasonable frequency, and appropriate confidentiality protections.

10. Deletion or Return of Data

- 10.1** On termination of the Agreement, spanSense will, at the Customer's choice, delete or return all Customer Personal Data, and delete existing copies, except to the extent applicable law requires spanSense to retain it, consistent with clause 6.4 of the Terms & Conditions regarding export of Customer Data.

11. Liability

- 11.1** Each party's liability arising out of or in connection with this DPA is subject to the limitations and exclusions of liability set out in the Agreement.

12. Term

- 12.1** This DPA takes effect on the date the Customer first accepts the Agreement and continues for as long as spanSense processes Customer Personal Data on the Customer's behalf.

13. General

- 13.1** This DPA is governed by the laws of England and Wales, consistent with clause 20 of the Terms & Conditions.
- 13.2** Except as amended by this DPA, the Agreement remains in full force and effect.

Annex 1: Details of Processing

SUBJECT MATTER	Provision of the spanSense bridge and structure inspection management platform to the Customer
DURATION	For the term of the Agreement, and thereafter as set out in clause 10 of this DPA
NATURE AND PURPOSE	Hosting, storage, and processing of data submitted by the Customer's Authorised Users in order to provide the Service, including account management and support
CATEGORIES OF DATA SUBJECTS	The Customer's Authorised Users (e.g. inspectors, engineers, administrators); individuals incidentally identifiable in site photographs uploaded to the Service
TYPES OF PERSONAL DATA	Name, email address, role/job title, login and usage data; inspector names recorded against inspection records; individuals incidentally captured in site photographs
SPECIAL CATEGORY DATA	Not intentionally collected or required by the Service

Annex 2: Sub-processors and Security Measures

Approved Sub-processors

SUB-PROCESSOR	PURPOSE
Render	Application hosting
Supabase	PostgreSQL database, and storage of uploaded photographs and files
Google (Gemini API)	AI-assisted extraction of structured data from uploaded inspection documents and drafting of conclusion text; document contents and inspector-entered comments are sent to this API for processing
CARTO / OpenStreetMap	Map tile imagery for the structure-location map; tile requests carry the requesting device's IP address

Summary of Security Measures

- Encrypted (HTTPS) connections between users and the Service
- Passwords stored using salted hashing (bcrypt); optional TOTP two-factor authentication
- Server-side session management
- Role-based access permissions within the Service
- Uploaded files held in private storage, accessed only via short-lived signed links

See spanSense's Data Security Policy for full detail, which is incorporated into this Annex by reference and may be updated from time to time consistent with clause 4 of this DPA.